

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY,
FLORIDA**

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT'S NOTICE EXPOSING THE INVALIDITY OF HABITUAL
RATIONALES FOR IGNORING PRO SE DEFENSES**

I. INTRODUCTION

Defendant, Marc Moszkowski, appearing pro se, respectfully files this Notice to preserve the record and to preemptively address the habitual rationales sometimes invoked to discount or disregard the pleadings of self-represented litigants. None of these rationales apply here, and each collapses upon scrutiny.

Over the course of several years, Defendant has filed 178 pleadings, every one of which has been accepted and docketed, sometimes within minutes of filing, yet none was substantively adjudicated. With judgment expected,

Defendant must place on the record that there is no lawful or factual basis for ignoring his defense.

II. HABITUAL RATIONALES AND COUNTER-ANALYSIS

1. “Pro se litigant not held to professional standards.”

Counter: Defendant’s filings consistently exceed the minimum professional standard. They are paginated, consecutively numbered, and submitted as searchable PDFs—allowing efficient review and citation—while Plaintiff’s counsel routinely files scanned, unpaginated documents that require lengthy and awkward OCR correction before use. Far from lowering the bar, Defendant’s pleadings demonstrate greater clarity, organization, and accessibility than those of opposing counsel, and materially reduce the burden on the Court.

2. “Filings redundant / repetitive.”

Counter: Redundancy is compelled by the Court’s silence. Defendant has had no choice but to reiterate variations of comparable arguments to preserve rights and avoid waiver.

3. “Volume of filings burdens the Court.”

Counter: The volume reflects Plaintiffs’ shifting theories and the Court’s prolonged refusal to decide threshold issues. Judicial

economy is not served by silence but by rulings.

4. **“Submissions frivolous.”**

Counter: Frivolous means baseless in fact or law. Defendant’s filings are anchored in meticulously archived facts, sworn exhibits, and coherent legal reasoning. They remain unrebutted.

5. **“Indigency or incapacity is no excuse.”**

Counter: Defendant’s indigency and medical condition are not self-created but the direct consequence of Plaintiffs’ fraud and misconduct:

5.1. Plaintiffs refused to pay Defendant’s earned salaries despite a formal signed commitment to the U.S. Government; the amount still unpaid represents approximately **three times** the very sum this Court adjudicated to Plaintiffs—before trebling it;

5.2. To rationalize that refusal, Plaintiffs twice produced transparently fabricated evidence, yet the Court never considered Defendant’s detailed objections worthy of attention;

5.3. Plaintiffs further refused to advance litigation expenses as mandated by the corporation’s own Bylaws—an issue Defendant raised on multiple occasions, including during

hearings—yet the Court never gave any indication of considering this straightforward and indisputable matter.

5.4. A major shareholder, with Howard's complicity, fraudulently seized Defendant's bank account and home in France, thereby eliminating even minimal financial capacity;

5.5. Defendant's serious hernias and resulting incapacity stem directly from years of excessive physical effort to maintain his home without help, coupled with the impossibility of obtaining treatment due to imposed destitution.

Thus, Plaintiffs cannot be allowed to benefit from the very disabilities they deliberately engineered.

6. "Court lacks time to read."

Counter: The Clerk's Office has docketed Defendant's filings sometime in as little as 12 minutes, proving administrative capacity exists. Refusal to read is not a lawful ground to deny due process.

III. CONCLUSION

There is no legitimate legal or factual basis for ignoring Defendant's filings. Every habitual rationale collapses upon examination. To disregard them

would not constitute an exercise of judicial discretion but rather a denial of it, and would only reward Plaintiffs' repeated fraud on the Court.

IV. EPILOGUE

Were the two sibling cases—one in Florida, the other in Southern France—to be presented as the plot of a film, the story would likely be judged too improbable to produce. Yet the record speaks for itself: in Florida—after seven years and 178 filings—not a single defense was substantively heard, and judgment was rendered *by default, in absentia*; in France—without service of summons, without notification of trial date or venue—judgment was likewise entered *by default, in absentia*. Both cases were built on fabricated narratives, fraud on the Court, and in disdain of incontrovertible evidence in favor of Defendant, even though each case had previously been dismissed in Defendant's favor—in U.S. Federal Court in Florida and in the *Tribunal des Référés* in France. What might be dismissed as implausible fiction in cinema exists in reality as two court dockets, closely bound together, both proceeding with the same disregard for hard facts, fundamental logic, and plain common sense—standards without which no judicial system can claim legitimacy. Indeed, what sober public could believe such a script?

Respectfully submitted on this 15th day of August, 2025.

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CERTIFICATE OF SERVICE

I hereby certify that, on this 15th day of August, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

